



INDIA NON JUDICIAL

Government of National Capital Territory of Delhi

सत्यमेव जयते

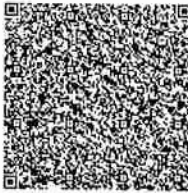
₹1,000

e-Stamp

Certificate No. : IN-DL41377221334978X
Certificate Issued Date : 25-Aug-2025 04:38 PM
Account Reference : SELFPRINT (PU)/ dl-self/ NEHRU/ DL-DLH
Unique Doc. Reference : SUBIN-DLTL-SELF15453827594625X
Purchased by : SHRI RAM GUPTA
Description of Document : Article 5 General Agreement
Property Description : NA
Consideration Price (Rs.) : 0
(Zero)
First Party : SHAIL AGRO INDUSTRIES PRIVATE LIMITED
Second Party : HORIZON INDUSTRIAL PARKS LIMITED AND FARUKHNAGAR LOGISTICS PARKS LLP
Stamp Duty Paid By : SHAIL AGRO INDUSTRIES PRIVATE LIMITED
Stamp Duty Amount(Rs.) : 1,000
(One Thousand only)

₹1,000 ₹1,000 ₹1,000 ₹1,000

₹1,000



SELF PRINTED CERTIFICATE TO BE
VERIFIED BY THE RECIPIENT AT
WWW.SHCILESTAMP.COM

IN-DL41377221334978X

Please write or type below this line

THIS STAMP PAPER FORMS AN INTEGRAL PART OF THE PARTNERSHIP ACQUISITION AGREEMENT DATED 4 SEPTEMBER 2025 EXECUTED BY AND AMONGST HORIZON INDUSTRIAL PARKS LIMITED, SHAIL AGRO INDUSTRIES PRIVATE LIMITED AND FARUKHNAGAR LOGISTICS PARKS LLP

Statutory Alert:

1. The authenticity of this Stamp certificate should be verified at 'www.shcilestamp.com' or using e-Stamp Mobile App of Stock Holding. Any discrepancy in the details on this Certificate and as available on the website / Mobile App renders it invalid.
2. The onus of checking the legitimacy is on the users of the certificate.
3. In case of any discrepancy please inform the Competent Authority.



PARTNERSHIP ACQUISITION AGREEMENT

4 SEPTEMBER 2025

BY AND AMONGST

HORIZON INDUSTRIAL PARKS LIMITED

AND

SHAIL AGRO INDUSTRIES PRIVATE LIMITED

AND

FARUKHNAGAR LOGISTICS PARKS LLP

Khaitan & Co

One World Centre

10th and 13th Floors, Tower 1

841 Senapati Bapat Marg

Mumbai 400 013, India

T: +91 22 6636 5000

F: +91 22 6636 5050

Ref: DSJ/2024

TABLE OF CONTENTS

1	DEFINITIONS AND INTERPRETATION.....	3
2	AGREEMENT TO PURCHASE	4
3	PURCHASE CONSIDERATION	4
4	USE OF PROCEEDS	4
5	ACTIONS ON OR PRIOR TO THE EXECUTION DATE	4
6	CONDITIONS PRECEDENT	5
7	CLOSING.....	5
8	CONDITIONS SUBSEQUENT	6
9	REPRESENTATIONS AND WARRANTIES	6
10	INDEMNITY	9
11	DISPUTE RESOLUTION.....	11
12	CONFIDENTIALITY AND NON-DISCLOSURE.....	12
13	NOTICES.....	14
14	TERM AND TERMINATION.....	15
15	MISCELLANEOUS	16
	SCHEDULE I PARTNERSHIP INTEREST PATTERN	23
	SCHEDULE II DEFINITIONS AND INTERPRETATIONS	24
	SCHEDULE III CONDITIONS PRECEDENT.....	32
	SCHEDULE IV FORMAT OF THE CP SATISFACTION CERTIFICATE	33
	SCHEDULE V FORMAT OF RETIREMENT DEED.....	34

This **PARTNERSHIP ACQUISITION AGREEMENT** is executed at New Delhi, India, on this 4th day of September 2025 (“**Execution Date**”)

BY AND AMONGST:

HORIZON INDUSTRIAL PARKS LIMITED, a company incorporated under the Laws of India having its registered office at One World Centre, Unit No 1501 B, Tower 1, 841, Jupiter Textile Mills, Senapati Bapat Marg, Mumbai, Maharashtra, 400013, India and having Permanent Account Number: AACJ2346P (hereinafter referred to as the “**Purchaser**”, which expression shall, unless it be repugnant to the meaning or context thereof, include its Affiliates, successors and assigns) of the **FIRST PART**;

AND

SHAIL AGRO INDUSTRIES PRIVATE LIMITED, a company incorporated under the Laws of India having its registered office at 8082, Pocket A Sector C, Vasant Kunj, New Delhi 110070, India and having Permanent Account Number: AAACS0880R (hereinafter referred to as the “**Seller**”, which expression shall, unless it be repugnant to the meaning or context thereof, include its Affiliates, successors and assigns) of the **SECOND PART**;

AND

FARUKHNAGAR LOGISTICS PARKS LLP, a limited liability partnership incorporated under the Limited Liability Partnership Act 2008, having its registered office at 1st floor, Embassy Point, 150 Infantry road, Bangalore, Karnataka 560001, India and having Permanent Account Number: AAFF6705L (hereinafter referred to as the “**LLP**”, which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include its successors and assigns) of the **THIRD PART**.

The Purchaser, Seller and the LLP are hereinafter referred to individually as a “**Party**” and collectively as the “**Parties**”, as the context may require.

WHEREAS:

- A. The LLP is engaged in the Business (*as defined hereinafter*).
- B. As of the Execution Date, the Partnership Interest (*as defined hereinafter*) pattern of the LLP is set out in Part A of SCHEDULE I (*Partnership Interest Pattern on the Execution Date*).
- C. The Purchaser has agreed to purchase the Partnership Interest held by the Seller in the LLP, together with all rights, title and interest therein in accordance with and subject to the terms of this Agreement.
- D. The Parties are now entering into this Agreement to: (a) record the terms and conditions agreed between them for the purchase of the Partnership Interest by the Purchaser from the Seller; and (b) other matters in connection therewith.

NOW THEREFORE, in consideration of the foregoing and other good and valuable consideration, the receipt and adequacy of which are hereby expressly acknowledged, the Parties, intending to be legally bound, hereby agree as follows:

1 DEFINITIONS AND INTERPRETATION

Unless a contrary intention appears and/or the context otherwise requires, in addition to the terms defined elsewhere in this Agreement, the definitions listed in Part A of SCHEDULE II

(Definitions) shall apply throughout this Agreement. The interpretation and/or construction of this Agreement shall be in accordance with the rules of interpretation set out in Part B of SCHEDULE II (Interpretation).

2 AGREEMENT TO PURCHASE

- 2.1 Subject to the terms and conditions of this Agreement, the fulfilment of the Conditions Precedent to the satisfaction of the Purchaser, and relying on the Warranties, undertakings and covenants of the Seller under the Transaction Documents, on the Closing Date, the Purchaser agrees to purchase from the Seller, and the Seller agrees to sell to the Purchaser, its right, title and interest in and to the Seller Interest, free and clear from all Encumbrances, for the Purchase Consideration, together with all accrued benefits and rights attached thereto, such that the Purchaser receives full legal and beneficial ownership and all rights as partner relating to the Seller Interest.
- 2.2 The Partnership Interest pattern of the LLP as on the Execution Date is set out in Part A of SCHEDULE I (Partnership Interest Pattern on the Execution Date) and the Partnership Interest pattern of the LLP immediately post Closing, is set forth in Part B of SCHEDULE I (Partnership Interest Pattern immediately post Closing).
- 2.3 The Seller hereby represents and warrants to the Purchaser that it has procured the waiver of any and all pre-emptive rights, rights of first offer, rights of first refusal and other rights, whether conferred by Contract or otherwise (except as may have been provided under the Existing LLP Agreements), with respect to the Seller Interest.

3 PURCHASE CONSIDERATION

- 3.1 The Purchaser shall, in accordance with this Agreement, remit the Purchase Consideration, for the purchase and transfer of the Seller Interest to the Purchaser on the Closing Date.
- 3.2 Notwithstanding anything to the contrary contained in this Agreement, the Purchaser shall be entitled to deduct and withhold Taxes as per Section 194Q of the IT Act ("**Withholding Tax**") from payments of all or a portion of the Purchase Consideration to be made pursuant to this Agreement. To the extent that amounts are so withheld and paid to the appropriate Governmental Authority by the Purchaser, such withheld amounts shall be treated for the purposes of this Agreement as having been paid to the relevant payee in respect of which such deduction and withholding was made.
- 3.3 The Purchaser shall: (a) deposit the Withholding Tax with the relevant Governmental Authority; (b) complete filing of Withholding Tax returns within the statutory due date; and (c) issue to the Seller, a Withholding Tax certificate in Form 16A; in each case within the prescribed statutory timelines.

4 USE OF PROCEEDS

The Seller shall not use any proceeds received under this Agreement in violation of Anti-Corruption Laws, Anti-Money Laundering Laws or Sanctions Laws.

5 ACTIONS ON OR PRIOR TO THE EXECUTION DATE

- 5.1 On or prior to the Execution Date:
 - 5.1.1 the Seller shall deliver to the Purchaser, a certified true copy of the resolution passed

by its governing body authorising the execution, delivery and performance of the Transaction Documents (to which it is a party) and authorising its officers to execute such Transaction Documents on its behalf; and

- 5.1.2 the Purchaser shall deliver to the Seller, a certified true copy of the resolution passed by its governing body authorising the execution, delivery and performance of the Transaction Documents (to which it is a party) and authorising its officers to execute such Transaction Documents on its behalf.

6 CONDITIONS PRECEDENT

- 6.1 The obligation of the Purchaser to proceed to Closing is conditional upon the fulfilment, to the Purchaser's satisfaction, of each of the conditions set forth in SCHEDULE III (*Conditions Precedent*) ("**Conditions Precedent**") prior to the Closing Date, any one or more of which may be waived, deferred or prescribed to be a condition subsequent to Closing, in writing by the Purchaser at its sole discretion.
- 6.2 The Seller shall procure the fulfilment of the Conditions Precedent as soon as possible and in any event prior to the Long Stop Date. Upon the satisfaction (or waiver, deferral or re-designation by the Purchaser, as the case may be in accordance with the terms hereof) of all the Conditions Precedent, the Seller shall, within 2 (two) days of such fulfilment of the last of the Conditions Precedent, issue to the Purchaser a letter substantially in the format annexed hereto in SCHEDULE IV (*Format of the CP Satisfaction Certificate*) (the "**CP Satisfaction Certificate**") enclosing, where applicable, documentary evidence including certified true copies of all necessary documents evidencing fulfilment of each of such Conditions Precedent.
- 6.3 If any of the Conditions Precedent have not been fulfilled on or before the Long Stop Date, the Purchaser may in its sole discretion terminate this Agreement by sending a written notice to the other Parties. Notwithstanding the aforesaid, the Purchaser may, in its sole discretion, waive, defer or prescribe as conditions subsequent to Closing, in writing, any or all of the Conditions Precedent, in whole or in part, by giving a notice in writing to the Seller, and the Parties shall proceed towards Closing in accordance with Clause 7 (*Closing*). It is clarified that a waiver of any Conditions Precedent shall not constitute a waiver of, or impair, any right available to the Purchaser in respect of any Warranties or Claims.
- 6.4 If the Closing has not occurred on or prior to the Long Stop Date, the Purchaser shall have the right but not the obligation to terminate this Agreement by serving a written notice to the other Parties.
- 6.5 If at any time, the Seller becomes aware of a fact or circumstance that will or may prevent any of the Conditions Precedent from being satisfied prior to the Long Stop Date, the Seller shall promptly inform the Purchaser of such fact or circumstance in writing.

7 CLOSING

- 7.1 Subject to the fulfilment of the Conditions Precedent (or waiver, deferral or prescription as condition subsequent to Closing, by the Purchaser), in accordance with Clause 6 (*Conditions Precedent*), the Closing shall take place at the registered office of the LLP, or such other place as may be mutually agreed between the Parties. The "**Closing Date**" shall be the date on which Closing occurs, which shall be a date that is mutually agreed, in writing, between the Parties.

7.2 On the Closing Date:

- 7.2.1 the Parties and Bagur Logistics Park Private Limited shall (and the Purchaser shall ensure that Bagur Logistics Park Private Limited shall) duly stamp and execute the retirement deed (in agreed form set out in SCHEDULE V (Format of Retirement Deed)) for recording the: (a) retirement of the Seller from the LLP, and (b) confirmation from the Seller that there are no dues and/or outstanding claims against the LLP;
 - 7.2.2 the Purchaser shall deliver a demand draft of an amount equivalent to the Purchase Consideration to the Seller; and
 - 7.2.3 simultaneously with Clause 7.2.2, the Seller Interest shall be transferred to the Purchaser, and the Seller shall retire as a partner of the LLP.
- 7.3 All actions set out in Clause 7.2 ("Closing Actions") shall be deemed to have occurred simultaneously and the Closing as contemplated herein shall not be deemed to have occurred unless all the Closing Actions are consummated. In the event that all the Closing Actions are not completed on the same day, the day on which the last Closing Action is completed shall be deemed to be the Closing Date for the purposes of this Agreement.
- 7.4 If the Purchaser has remitted the Purchase Consideration to the Seller (*via* delivery of a demand draft) in accordance with Clause 7.2.2 above but the Closing does not occur within 3 (three) Business Days of such remittance, then the Seller shall, at its own expense, promptly, and in any event within the expiry of such 3 (three) Business Days, refund the entire Purchase Consideration to the designated account of the Purchaser, and in the case of any delay in payment, the Seller shall be obligated to pay to the Purchaser (or a nominee designated by the Purchaser) the unpaid amounts along with an interest of 18% (eighteen percent) per annum from the expiry of the period of 3 (three) Business Days mentioned above until the date of actual payment.
- 7.5 In the event any Governmental Approval (in connection with the refund of the Purchase Consideration as set out in Clause 7.4) is required, the Seller shall obtain all such Governmental Approvals for refunding the Purchase Consideration to the Purchaser at the earliest. Each Party shall provide such co-operation to the Seller as may be reasonably requested by the Seller in seeking such Governmental Approval(s).

8 CONDITIONS SUBSEQUENT

- 8.1 Within 30 (thirty) days from the Closing Date, the LLP shall file Form 4 under the LLP Act, notifying the RoC of change in partners to reflect the retirement of the Seller as a partner of the LLP. The Seller shall provide such co-operation as may be required by the LLP (including executing any documents).
- 8.2 Within 30 (thirty) days from the Closing Date, the LLP shall file Form 3 under the LLP Act, notifying the RoC of the Restated LLP Agreement.
- 8.3 The Seller shall provide necessary support and cooperation and perform all actions as may be reasonably required for filing of Form DI in relation to the transaction contemplated under this Agreement and until procurement of the approval the RBI in relation to such Form DI.

9 REPRESENTATIONS AND WARRANTIES

- 9.1 Purchaser and LLP Warranties: The Purchaser (on behalf of itself) and the LLP (on behalf of

itself) hereby represents and warrants to the other Parties that the following warranties are true and correct in all respects and not misleading in any respect as of the Execution Date, and shall be true and correct in all respects and not misleading in any respect as of the Closing Date as if made on such date, by reference to the facts and circumstances then existing:

9.1.1 it is duly organised and validly existing under the Applicable Laws of its jurisdiction of formation;

9.1.2 it has the power and authority to execute, deliver and perform the obligations set out in this Agreement, and the execution, delivery and performance by it of this Agreement will not:

(a) violate, conflict with, result in a breach of the terms, conditions or provisions of, result in the creation of any Encumbrances or constitute a default, an event of default (or event that, with the giving of notice or lapse of time or both, would constitute an event of default) or an event creating rights of acceleration, modification, termination or cancellation or a loss of rights under any or all of the following:

(i) its Charter Documents,

(ii) any Contract to which it is a party,

(iii) any Consent, Governmental Approval or Order to which it is a party or by which it is bound, or

(iv) Applicable Law of the jurisdiction of incorporation of the Purchaser or the LLP (as applicable),

(b) constitute an act of bankruptcy, preference, insolvency or fraudulent conveyance under any bankruptcy law applicable to it for the protection of debtors or creditors; and

9.1.3 this Agreement, when executed, shall be duly and validly executed by it and shall constitute legal, valid and binding obligations, enforceable against it in accordance with the terms of this Agreement.

9.2 Seller Warranties: The Seller hereby represents and warrants for itself to the other Parties that the following warranties are true and correct in all respects and not misleading in any respect as of the Execution Date, and shall be true and correct in all respects and not misleading in any respect as of the Closing Date as if made on such date, by reference to the facts and circumstances then existing:

9.2.1 The Seller is duly organised and validly existing under the Applicable Laws of its jurisdiction of formation.

9.2.2 The Seller has the power and authority to execute, deliver and perform the obligations set out in this Agreement, and the execution, delivery and performance by it of this Agreement will not:

(a) violate, conflict with, result in a breach of the terms, conditions or provisions of, result in the creation of any Encumbrances or constitute a default, an event of default (or event that, with the giving of notice or lapse of time or both,

would constitute an event of default) or an event creating rights of acceleration, modification, termination or cancellation or a loss of rights under any or all of the following:

- (i) its Charter Documents,
 - (ii) any Contract to which it is a party,
 - (iii) any Consent, Governmental Approval or Order to which it is a party or by which it is bound, and/or
 - (iv) Applicable Law of the jurisdiction of incorporation of the Seller;
- (b) constitute an act of bankruptcy, preference, insolvency or fraudulent conveyance under any bankruptcy law applicable to it for the protection of debtors or creditors.
- 9.2.3 This Agreement, when executed, shall be duly and validly executed by it and shall constitute legal, valid and binding obligations, enforceable against it in accordance with the terms of this Agreement.
- 9.2.4 The Seller has not received any written notice or communication of and there is no private or governmental action, suit, proceeding, claim, arbitration or investigation threatened or pending before any Governmental Authority, which is ongoing, or in relation to which a notice has been received by the Seller (whether by way of counter claim or appeal or otherwise), that may restrain, prevent or make illegal the performance of the obligations of the Seller under this Agreement.
- 9.2.5 The Seller is the sole legal, registered and beneficial owner of the Seller Interest and holds all existing ownership rights, voting rights, rights to participate in the operation and affairs of the LLP, and rights to participate in the profits and losses of the LLP and to receive distributions from the LLP.
- 9.2.6 All capital contributions made by the Seller are fully paid up, free and clear of any Encumbrances.
- 9.2.7 Upon consummation of the Transaction, the Purchaser will acquire good, valid and marketable title to the Seller Interest, free and clear of all Encumbrances, and shall be the sole legal and beneficial owner of Seller Interest;
- 9.2.8 The Seller is an Indian Resident for the purposes of the IT Act and will remain an Indian resident for the Financial Year in which the transfer of Seller Interest is undertaken;
- 9.2.9 The Seller has no pending or threatened tax proceedings or Claims that would render any aspect of the Transaction void under Section 281 of the IT Act and/or Section 81 of the Central Goods and Services Tax Act, 2017. The transfer of the Seller Interest by the Seller, as contemplated under this Agreement, is in compliance with all Applicable Laws (including Section 281 of the IT Act and Section 81 of the Central Goods and Services Tax Act, 2017), and no prior permission is required from the assessing officer or any other Persons in this respect.
- 9.2.10 All documents, information and representations provided by the Seller to the chartered accountant for the purpose of preparing the certificate under Section 281 of

the IT Act are true, accurate and not misleading and have been made in accordance with Applicable Law.

- 9.2.11 There are no Taxes payable by the: (a) Purchaser that arise out of, in connection with, or result from, or relate to the payment of the Purchase Consideration by the Purchaser to the Seller in accordance with the terms contained in this Agreement; and (b) LLP as a result of the transactions contemplated under this Agreement.
- 9.2.12 The Seller has neither directly nor indirectly, made, promised to make, or caused to be made, any Improper Payments: (a) to or for the use or benefit of any Government Official; (b) to any other Person either for an advance or reimbursement, with knowledge or reason to know that any part of such Improper Payment would be directly or indirectly given or paid by such other person, or would be reimbursed by such other Person for Improper Payments previously made, to any Government Official; or (c) to any other Person or entity, to obtain or keep business or to secure some other improper advantage, or the payment of which would otherwise violate applicable Anti-Corruption Laws.
- 9.2.13 The Seller has not been: (a) subject or target of any Sanctions Laws; or (b) in the past 5 (five) years engaged in any business activities with or for the benefit of any persons that are the subject of Sanctions Laws (including any Sanctioned Person) or involving a Sanctioned Country, in violation of applicable Sanctions Laws.
- 9.2.14 Neither the Seller, nor any of its designated partners, directors, executives and/or employees, any authorised agents of the Seller, engaged by the Seller for the purposes of the Business, is a person or entity with whom transactions are prohibited under any Sanctions Laws, or is named on any list of prohibited persons, entities, or jurisdictions maintained and administered by the RBI.
- 9.2.15 The Seller is not in violation of Anti-Corruption Laws, Anti-Money Laundering Laws, or Sanctions Laws.
- 9.2.16 The Seller is not required to obtain a registration under the Central Goods and Services Tax Act, 2017.

10 INDEMNITY

10.1 Indemnification by Indemnifying Persons

- 10.1.1 The Indemnifying Person shall indemnify, defend and hold harmless the Indemnified Persons from and against any and all Losses, suffered or incurred by any of the Indemnified Persons which arises out of, or results from, or relates to:
- (a) a misrepresentation or inaccuracy in, or breach of any of the Warranties;
 - (b) breach by the Seller of any of their agreements, obligations, covenants, conditions or undertakings contained in this Agreement;
 - (c) fraud, wilful misconduct or gross negligence by the Seller;
 - (d) any Indian Tax liability on the Purchaser and/or the LLP that arises out of, or results from, or relates to non-payment by the Seller of any Tax payable by it in relation to receipt of the Purchase Consideration under this Agreement;

and/or

- (e) any liability (including Tax liability) on the LLP that arises out of, or results from, any action or omission by Seller prior to the Closing Date;

10.1.2 All items under Clause 10.1.1 shall be collectively referred to as “**Claims**” and individually as a “**Claim**”.

10.1.3 The Parties acknowledge and agree that any Loss suffered or incurred by the LLP shall be deemed to be a Loss suffered or incurred by the Purchaser.

10.1.4 The obligation of the Indemnifying Person to indemnify the Indemnified Persons pursuant to this Clause 10 (Indemnity) shall arise irrespective of any defence or right of appeal available to the Indemnified Persons.

10.1.5 Upon the Indemnified Persons realising a Claim from the Indemnifying Person pursuant to the provisions of this Agreement in respect of which a separate cause of action also lies against a third party, in accordance with Applicable Law, the Indemnifying Person shall have the right (but not the obligation) to pursue such Claim and the Indemnified Persons shall provide all necessary support and information to the Indemnifying Person to pursue such Claim.

10.1.6 Any indemnity payments made pursuant to this Clause 10 (Indemnity) shall be: (a) made free and clear of and without deduction for or on account of any Taxes, charges, fees, costs, expenses or duties, etc; (b) grossed up for any Taxes paid or payable by the Indemnified Persons on receipt of such amount; (c) grossed up for any Taxes which are withheld by the Indemnifying Person under Applicable Law. If any Tax or amount in respect of such charges, fees, costs, expenses or duties must be deducted, or any Tax is required to be paid by the Indemnified Persons, from any amounts payable or paid pursuant to this Clause 10 (Indemnity) (“**Base Payment**”), then the Indemnifying Person shall pay an additional amount to the relevant Indemnified Person such that the total amount paid to the Indemnified Person, after deduction / payment of all Taxes, charges, fees, costs, expenses or duties required to be paid (including by the Indemnified Persons) is equal to the Base Payment.

10.1.7 The Parties agree that rights exercisable by the Indemnified Persons against the Indemnifying Person under this Clause 10 (Indemnity) shall be the sole monetary remedy of such Indemnified Persons against the Indemnifying Person with respect to the matters set out in Clause 10.1.1.

10.2 Indemnification Procedures

10.2.1 Any Claim for indemnity pursuant to this Agreement may be made by the Indemnified Person by notice in writing to any Indemnifying Person (“**Indemnity Claim Notice**”). The Indemnity Claim Notice issued by the Indemnified Person shall contain, to the extent available with the Indemnified Person reasonable details of the facts, matters or circumstances that gave rise to the Claim and the relevant documents in relation to the same. Where a Third Party Claim is made, the Indemnity Claim Notice shall set out details of the Third Party Claim along with the relevant documents that have been received by the Indemnified Person in respect of the Third Party Claim and the procedures set out in Clause 10.3 (Third Party Claims) shall apply.

10.2.2 The failure or delay of the Indemnified Persons to serve the Indemnity Claim Notice in

accordance with Clause 10.2.1 shall not relieve the Indemnifying Person of any indemnification responsibility under this Clause 10 (Indemnity).

10.2.3 Subject to Clause 10.3 (Third Party Claims) where applicable (in which case the procedures under Clause 10.3 (Third Party Claims) shall apply), the Indemnifying Person shall make the indemnity payments in cash and in immediately available funds (or such other manner acceptable to the Indemnified Persons) within 30 (thirty) days from the date of the Indemnity Claim Notice.

10.3 Third Party Claims

10.3.1 If any notice relating to Third Party Claim made against the LLP is received by the Seller post the Closing Date, the Seller shall immediately inform the LLP and the Purchaser within 2 (two) Business Days of receipt of such Third Party Claim.

10.3.2 The Indemnified Party shall have the right to take any action, as it may deem necessary, to control the defence, negotiation or settlement of Third Party Claims or proceedings (including without limitation, making claims or counter claims against third parties).

10.4 No Reimbursement

The Indemnifying Person hereby waives all rights and remedies against the LLP under Applicable Law in respect of any contribution or reimbursement from the LLP in respect of the Loss paid by the Indemnifying Person to the Indemnified Persons.

10.5 Government Approvals

To the extent the payment to any Indemnified Person of any amounts pursuant to the provisions of this Clause 10 (Indemnity), is subject to the receipt of any Governmental Approval, the Indemnifying Person shall obtain all such Governmental Approval(s) and shall make all applications and take all steps required to obtain the same, and the Indemnified Persons shall extend all such co-operation to each other as may be reasonably required to obtain such Governmental Approvals.

10.6 Payment Methods

In respect of any Claim made by an Indemnified Person in the Indemnity Claim Notice, the Indemnified Person may, at its sole discretion, require the indemnity payment to be paid to the relevant Indemnified Persons and/or any nominees of such Indemnified Persons.

11 DISPUTE RESOLUTION

11.1 Any dispute arising out of or in connection with this Agreement, including any question regarding its existence, validity or termination, shall be referred to and finally resolved by arbitration administered by the Singapore International Arbitration Centre in accordance with the Arbitration Rules of the Singapore International Arbitration Centre ("**SIAC Rules**") for the time being in force, which rules are deemed to be incorporated by reference in this Clause 11 (Dispute Resolution). In the event of such arbitration:

11.1.1 the venue and seat of the arbitration shall be Singapore;

11.1.2 the tribunal shall consist of 3 (three) arbitrators; 1 (one) to be appointed by the applicants, 1 (one) to be appointed by the respondents and the third to be appointed

by the 2 (two) arbitrators. If either the applicant(s) and/or the respondent(s) fails to appoint an arbitrator as set out in this Clause 11.1, the arbitrator of such party shall be appointed in accordance with the SIAC Rules;

- 11.1.3 the language of the arbitration shall be English;
- 11.1.4 the arbitration awards shall be reasoned and shall be final and binding on the disputing Parties and may be specifically enforced by any court of competent jurisdiction;
- 11.1.5 in respect of any court proceedings commenced in Singapore under the International Arbitration Act, 1994 in relation to arbitration, the Parties agree: (a) to commence such proceedings before the Singapore International Commercial Court (the “**SICC**”); and (b) that in any event, such proceedings shall be heard and adjudicated by the SICC;
- 11.1.6 the tribunal shall be entitled to decide on and apportion the costs and reasonable expenses (including reasonable fees of counsel retained by the Parties) incurred in the arbitration;
- 11.1.7 the existence and content of any arbitration proceeding and any award thereof shall be confidential among the Parties, and subject to the terms of Clause 12 (*Confidentiality and Non-Disclosure*) hereof;
- 11.1.8 the existence or subsistence of a dispute between the Parties, or the commencement or continuation of arbitration proceedings, shall not, in any manner, prevent or postpone the performance of those obligations of the Parties under this Agreement which are not in dispute, and the arbitrators shall give due consideration to such performance, if any, in making a final award;
- 11.1.9 the provisions of Part I of the Indian Arbitration and Conciliation Act, 1996 (save and except Sections 9, 27 and 37(1)(b) therein) shall not be applicable to, and shall be specifically excluded from, any and all arbitration proceedings conducted in accordance with this Clause 11 (*Dispute Resolution*);
- 11.1.10 each Party shall participate in good faith to reasonably expedite (to the extent practicable) the conduct of any arbitral proceedings commenced in accordance with this Clause 11 (*Dispute Resolution*); and
- 11.1.11 the Parties agree to the consolidation of arbitration proceedings in relation to any disputes arising under this Agreement and/or the other Transaction Documents.
- 11.2 Nothing shall preclude a Party from seeking interim equitable or injunctive relief, or both. The pursuit of equitable or injunctive relief shall not be a waiver of the right of the Parties to pursue any other remedy or relief through the arbitration described in this Clause 11 (*Dispute Resolution*).

12 CONFIDENTIALITY AND NON-DISCLOSURE

- 12.1 Each Party shall keep all information and other materials passing between it and the other Parties in relation to the transactions contemplated by this Agreement and the other Transaction Documents and also in relation to the LLP and/or the Purchaser as well as to the existence and the terms and conditions of this Agreement and the other Transaction Documents (the “**Information**”) confidential and shall not, without the prior written consent of the other Party, divulge the Information to any other Person or use the Information other

than for carrying out the purposes of this Agreement and the other Transaction Documents except:

- 12.1.1 to the extent that such Information is in the public domain other than by a breach of this Agreement and/or the other Transaction Documents;
 - 12.1.2 to the extent that such Information is required or requested to be disclosed by any Applicable Law, the rules of any stock exchange or any applicable regulatory requirements or by any Governmental Authority to whose jurisdiction the relevant Party is subject or with whose instructions it is customary to comply under notice to the other Party(ies);
 - 12.1.3 to the extent required to be disclosed to any Governmental Authority for the purpose of enforcement of rights and obligations under this Agreement and/or the other Transaction Documents;
 - 12.1.4 to employees, officers, directors or professional advisors of any Party on a need to know basis, subject to the disclosing party informing such persons of the confidential nature of such Information and the disclosing party procuring that the recipients of the confidential information comply with the confidentiality obligations set out in this Clause 12 (Confidentiality and Non-Disclosure) as if they were that party;
 - 12.1.5 to the extent that any of such Information is later acquired by a Party from a source not obligated to any other Party hereto, or its Affiliates, to keep such Information confidential;
 - 12.1.6 to the extent that any of such Information was previously known or already in the lawful possession of a Party, prior to the disclosure by any other Party hereto;
 - 12.1.7 to the extent that any information, similar to the Information, shall have been independently developed by a Party without reference to any Information furnished by any other Party hereto; and
 - 12.1.8 in respect of the LLP and Purchaser, to any of their respective Affiliates, members of each of the foregoing's investment committees, directors, members, officers, advisory committees, and similar bodies, direct and indirect investors, shareholders, partners, employees, insurers (including brokers and re-insurers), lenders, prospective investors and potential sources of capital (including prospective limited partners and/or any related advisers, affiliates or agents) and/or potential transferees and each of the foregoing's respective advisors (including legal advisers, accountants, consultants, appraisers, auditors and financial advisers), in each case, who are informed of the confidential nature of such Information and are subject to customary confidentiality obligations similar to as set out in this Clause 12 (Confidentiality and Non-Disclosure).
- 12.2 No formal or informal public announcement or press release which makes reference to the Parties or the terms and conditions of this Agreement or any of the matters referred to herein, shall be made or issued by any Party without the written consent of the other Parties.
- 12.3 If any of the Parties are obliged to make or issue any announcement or press release required by Law or by any stock exchange or Governmental Authority, it shall give the other Parties every reasonable opportunity to comment on any announcement or release before it is made or issued.

- 12.4 Each Party accepts and acknowledges that the undertakings set out in this Clause 12 (*Confidentiality and Non-Disclosure*) are reasonable restrictions placed on the Parties and a breach thereof would cause loss and injury to the other Parties. Each Party agrees, without prejudice to any other rights of the other Parties, that such other Parties shall be entitled to seek equitable remedy in the form of restraint orders against the defaulting Party for any breach or attempted breach of this Clause 12 (*Confidentiality and Non-Disclosure*).

13 NOTICES

- 13.1 Except as may be otherwise provided herein, all notices, requests, waivers and other communications made pursuant to this Agreement shall be in writing and signed by or on behalf of the Party giving it. Such notice shall be served by: (a) hand, courier or mail to the address set forth below; or (b) e-mail to the e-mail address set forth below; in each case it shall be marked for the attention of the relevant Party set forth below. Any notice so served shall be deemed to have been duly given: (i) in case of delivery by hand, when hand-delivered to the other Party; (ii) when sent by mail, on the 7th (seventh) Business Day after deposit in the mail with certified mail receipt requested and postage prepaid, provided that the sending Party receives a confirmation of delivery from the delivery service provider; (iii) when delivered by courier, on the 2nd (second) Business Day after deposit with an overnight delivery service, postage prepaid, with next Business Day delivery guaranteed, provided that the sending Party receives a confirmation of delivery from the delivery service provider; or (iv) when sent by e-mail, upon the delivery of the email to the e-mail address of the recipient.

13.1.1 If to the **Purchaser**

Address	15 th Floor, Tower 1, One World Centre, Senapati Bapat Road, Lower Parel, Mumbai - 400013
---------	--

E-mail	rk.narayan@hiparks.com
--------	--

Attention	Mr. RK Narayan
-----------	----------------

With a copy to (which shall not constitute a notice under this Clause 13 (*Notices*)):

Address	The Blackstone Group (HK) Limited, Suite 901, 9 th Floor, Two International Finance Centre, 8 Finance Street, Central Hong Kong
---------	--

Email	richard.blair@blackstone.com
-------	--

Attention	Richard Blair, Asia Pacific General Counsel
-----------	---

With a copy to (which shall not constitute a notice under this Clause 13 (*Notices*)):

Address	Khaitan & Co, 10 th , 13 th and 14 th Floor, One World Centre, Tower 1C, Elphinstone Road, Senapati Bapat Marg, Mumbai, Maharashtra, India 400 013
---------	---

Email deepak.jodhani@khaitanco.com

Attention Deepak Jodhani

13.1.2 If to the **LLP**

Address 15th Floor, Tower 1, One World Centre, Senapati Bapat Road, Lower Parel, Mumbai - 400013

E-mail Rk.narayan@hiparks.com

Attention RK Narayan

With a copy to the Purchaser and the other recipients as set out in Clause 13.1.1 (which shall not constitute a notice under this Clause 13 (*Notices*)).

13.1.3 If to **Seller**

Address Shail Agro Industries Private Limited, 674, Sector 15, Part 2, Gurugram, Haryana – 122001

E-mail vishalijain@hotmail.com

Attention Mrs. Vishali Jain

13.2 Except as may be otherwise provided herein, all notices, requests, waivers and other communications made pursuant to this Agreement shall be in writing and signed by or on behalf of the Party giving it.

13.3 **Change of Address**

A Party may change or supplement the addresses / E-mail ID given above, or designate additional addresses / E-mail ID / numbers, for the purposes of this Clause 13.3 (*Change of Address*), by giving the other Parties not less than 7 (seven) days' prior written notice of the new address / E-mail ID / number in the manner set forth above.

14 **TERM AND TERMINATION**

14.1 **Term**

This Agreement shall come into full force and effect from the Execution Date and shall remain valid and binding on the Parties until such time that it is terminated in accordance with Clause 14.2 (*Termination*).

14.2 **Termination**

14.2.1 This Agreement may be terminated prior to the Closing Date, by the written mutual consent of the Parties.

14.2.2 This Agreement may be terminated at the option of the Purchaser prior to the Closing Date, by a written notice to the other Parties:

- (a) if the Conditions Precedent have not been completed to the satisfaction of the Purchaser on or prior to the Long Stop Date;
- (b) if the Closing has not occurred on or before the Long Stop Date in accordance with Clause 6.4;
- (c) upon occurrence of a Material Adverse Effect; and/or
- (d) if there is any breach of any Warranties.

14.3 Effect of Termination

14.3.1 Save and except as otherwise expressly provided under this Agreement, the right to terminate in the situations described in Clause 14.2 (*Termination*) above shall be without prejudice to all other rights and remedies available to a Party under Applicable Law.

14.3.2 The termination of this Agreement shall not relieve any Party of any obligations or liabilities accrued prior to the date of termination.

14.3.3 Clause 1 (*Definitions and Interpretation*), Clause 9 (*Representations and Warranties*), Clause 10 (*Indemnity*), Clause 11 (*Dispute Resolution*), Clause 12 (*Confidentiality and Non-Disclosure*), Clause 13 (*Notices*), Clause 14.3 (*Effects of Termination*) and Clause 15 (*Miscellaneous*) shall survive the termination of this Agreement.

15 MISCELLANEOUS

15.1 Counterparts

This Agreement shall be executed simultaneously in any number of counterparts, each of which shall be deemed an original, but all of which will constitute one and the same instrument, and any Party may execute this Agreement by signing any one or more of such originals or counterparts. The delivery of signed counterparts by facsimile transmission or e-mail in “portable document format” (.pdf) shall be as effective as signing and delivering the counterpart in person.

15.2 Specific Performance

This Agreement shall be specifically enforceable at the instance of any Party. The Parties agree that a non-defaulting Party may suffer immediate, material, immeasurable, continuing and irreparable damage and harm in the event of any breach of this Agreement, and the monetary remedies at Law in respect of such breach may be inadequate, and that each Party shall be entitled to seek specific performance against the defaulting Party for the performance of such defaulting Party’s obligations under this Agreement in addition to any and all other legal or equitable remedies available to it.

15.3 Entire Agreement

15.3.1 This Agreement together with the Recitals and all the Schedules hereto, and the other Transaction Documents, constitutes and contains the entire agreement and

understanding between the Parties (including their Affiliates) with respect to the subject matter hereof and supersedes all previous communications, negotiations, commitments, either oral or written between the Parties (including their Affiliates) in respect of the subject matter hereof.

15.3.2 Each Party confirms that:

- (a) in entering into this Agreement, it has not relied on any express or implied representation or any warranty, assurance, covenant, indemnity, undertaking or commitment which is not expressly set out or referred to in this Agreement; and
- (b) other than the remedies expressly set forth in this Agreement, unless expressly permitted under this Agreement, no Party shall have any other right or remedy (whether by way of a claim for contribution or otherwise) in tort (including negligence) or for misrepresentation (whether negligent or otherwise, and whether made prior to, and/or in this Agreement or any other Transaction Documents) in relation to any express or implied representation or any warranty given in connection with this Agreement; provided that nothing in this Clause 15.3 (*Entire Agreement*) shall prevent a Party from: (i) seeking any injunctive reliefs that are available under Applicable Law; or (ii) seeking any remedy in case of fraud under Applicable Law.

15.4 **Governing Law and Jurisdiction**

This Agreement shall be governed in all respects by the Laws of India and subject to Clause 11 (*Dispute Resolution*), the courts at New Delhi, India shall have non-exclusive jurisdiction in respect of the matters set out herein.

15.5 **Severability**

Any provision of this Agreement, which is invalid or unenforceable, shall be ineffective to the extent of such invalidity or unenforceability, without affecting in any way the remaining provisions hereof. If for any reason whatsoever, any provision of this Agreement is or becomes, or is declared by a court of competent jurisdiction to be invalid, illegal or unenforceable, then the Parties shall negotiate in good faith to agree on such provision to be substituted, which provisions shall, as nearly as practicable, leave the Parties in the same or nearly similar position to that which prevailed prior to such invalidity, illegality or unenforceability.

15.6 **Amendments**

No change, alteration, variation, modification or addition to this Agreement shall be valid unless in writing and properly executed by the Parties hereto.

15.7 **Rights Cumulative**

Subject to the other terms of this Agreement:

15.7.1 the rights, powers, privileges and remedies provided in this Agreement are cumulative and are not exclusive of any rights, powers, privileges or remedies provided by Applicable Law or otherwise;

15.7.2 no failure to exercise nor any delay in exercising any right, power, privilege or remedy

under this Agreement shall in any way impair or affect the exercise thereof or operate as a waiver thereof in whole or in part; and

15.7.3 no single or partial exercise of any right, power, privilege or remedy under this Agreement shall prevent any further or other exercise thereof or the exercise of any other right, power, privilege or remedy.

15.8 **Successors and Assigns**

No rights, liabilities or obligations under this Agreement shall be assigned by any Party without the prior written consent of the other Parties; provided however, and notwithstanding the above, the Purchaser shall be entitled to assign the whole or any part of this Agreement to one or more of its Affiliates who acquires any Partnership Interest held by the Purchaser and/or its Affiliates, provided that such Affiliate shall cease to enjoy the rights under this Agreement immediately upon such Affiliate ceasing to be an Affiliate of the Purchaser.

15.9 **Costs and Expenses**

15.9.1 Except as otherwise provided in this Agreement or the other Transaction Documents, each Party shall pay its own expenses in connection with the preparation and performance of this Agreement and the other Transaction Documents and the consummation of the transactions contemplated hereby and thereby, including without limitation, all fees and expenses of legal and financial advisors, independent accountants and actuaries.

15.9.2 All costs in relation to completion of the Conditions Precedent and the stamp duty payable on the execution of this Agreement shall be borne by the Seller.

15.10 **Relationship of the Parties**

The Parties are independent contractors. None of the Parties shall have any right, power or authority to enter into any agreement for or on behalf of, or incur any obligation or liability of, or to otherwise bind, the other Parties except as specifically provided by this Agreement. Nothing in this Agreement shall be interpreted or construed to create an association or partnership between the Parties, deem them to be persons acting in concert or to impose any liability attributable to such relationship upon any of the Parties nor, unless expressly provided otherwise, to constitute any Party as the agent of any of the other Parties for any purpose.

15.11 **No Waiver**

No waiver of any provision of this Agreement or consent to any departure from it by any Party shall be effective unless it is in writing. A waiver or consent shall be effective only for the purpose for which it is given. No default or delay on the part of any Party in exercising any rights, powers or privileges operates as a waiver of any right, power or privilege, nor does a single or partial exercise of a right, power or privilege preclude any exercise of other rights, powers or privileges.

15.12 **Further Assurances**

The Parties shall execute other documents, cause meetings to be held, resolutions passed, exercise their votes and do and perform, and cause to be done and performed such further acts and things as may be necessary or desirable in order to give full effect to this Agreement and the transactions contemplated under the Agreement, whether prior to or after the Closing

Date.

15.13 No Recourse

Notwithstanding anything that may be expressed or implied in this Agreement and/or the other Transaction Documents, each Party agrees and acknowledges that the LLP, the Seller and their Affiliates shall have no rights against, and may not make any claim (whether by the enforcement of any assessment, by any legal or equitable proceeding or by virtue of any Applicable Law) against any Non-Recourse Persons (other than Affiliate(s) nominated by the Purchaser to acquire Partnership Interest prior to the Closing or who holds any Partnership Interest in the LLP) in connection with this Agreement and/or the other Transaction Documents or any other instrument, agreement or document referred to herein or therein or to be delivered hereunder or thereunder, and that any such claim shall only be made against the Purchaser. In addition, and for the avoidance of doubt, it is expressly agreed and acknowledged by the LLP and the Seller that no liability whatsoever shall attach to, be imposed on or otherwise be incurred by any Non-Recourse Person for any obligation of the Purchaser under this Agreement, any other Transaction Documents or any other instrument, agreement or document referred to herein or therein or to be delivered hereunder or thereunder for any claim based on, in respect of, or by reason of such obligations or their creation.

15.14 No Use of the Blackstone Name

Except as may be specifically permitted under the Transaction Documents, the LLP and the Seller shall not, in any way use Blackstone's name or mark or the name or mark of any of its Affiliates or any derivative thereof in any public disclosure, including any press release, without the prior written approval of the Purchaser.

[Following this page is the signature page]

IN WITNESS THEREOF, THE PARTIES HERETO HAVE CAUSED THIS PARTNERSHIP ACQUISITION AGREEMENT TO BE DULY EXECUTED AND DELIVERED BY THEIR DULY AUTHORISED REPRESENTATIVES AS OF THE DAY AND YEAR FIRST HEREINABOVE WRITTEN

Signed and delivered for and on behalf of

HORIZON INDUSTRIAL PARKS LIMITED





Name: R.K. NARAYAN

Title: Authorised Signatory, authorised per resolution of the board of directors dated 19 August 2025

IN WITNESS THEREOF, THE PARTIES HERETO HAVE CAUSED THIS PARTNERSHIP ACQUISITION AGREEMENT TO BE DULY EXECUTED AND DELIVERED BY THEIR DULY AUTHORISED REPRESENTATIVES AS OF THE DAY AND YEAR FIRST HEREINABOVE WRITTEN

Signed and delivered for and on behalf of

SHAIL AGRO INDUSTRIES PRIVATE LIMITED
For Shail Agro Industries Pvt. Ltd.

Vishali Jain
Authorised Signatory

Name: VISHALI JAIN

Title: Authorised Signatory, authorised per resolution of the board of directors dated 25 August 2025

SIGNATURE PAGE TO THE PARTNERSHIP ACQUISITION AGREEMENT ENTERED INTO BY AND AMONGST HORIZON INDUSTRIAL PARKS LIMITED, SHAIL AGRO INDUSTRIES PRIVATE LIMITED AND FARUKHNAGAR LOGISTICS PARKS LLP

IN WITNESS THEREOF, THE PARTIES HERETO HAVE CAUSED THIS PARTNERSHIP ACQUISITION AGREEMENT TO BE DULY EXECUTED AND DELIVERED BY THEIR DULY AUTHORISED REPRESENTATIVES AS OF THE DAY AND YEAR FIRST HEREINABOVE WRITTEN

Signed and delivered for and on behalf of

FARUKHNAGAR LOGISTICS PARKS LLP

Narayan.



Name:

R. K. NARAYAN.

Title: Authorised Signatory, authorised per resolution of the board of directors dated 29 July 2025

SCHEDULE I | PARTNERSHIP INTEREST PATTERN**PART A | PATRNSHIP INTEREST PATTERN ON THE EXECUTION DATE**

#	NAME OF PARTNER	CAPITAL CONTRIBUTION (INR)	% OF TOTAL PARTNERSHIP INTEREST
1.	Horizon Industrial Parks Limited	1,59,59,00,000	94.9940
2.	Shail Agro Industries Private Limited	8,40,00,000	5.0000
3.	Bagur Logistics Park Private Limited	1,00,000	0.0060
Total		1,68,00,00,000	100

PART B | PARTNERSHIP INTEREST PATTERN IMMEDIATELY POST CLOSING

#	NAME OF PARTNER	CAPITAL CONTRIBUTION (INR)	% OF TOTAL PARTNERSHIP INTEREST
1.	Horizon Industrial Parks Limited	1,67,99,00,000	99.9940
2.	Bagur Logistics Park Private Limited	1,00,000	0.0060
Total		1,68,00,00,000	100%

SCHEDULE II | DEFINITIONS AND INTERPRETATIONS

PART A | DEFINITIONS

1. Definitions

In this Agreement: (a) terms defined by inclusion in quotations and/or parentheses have the meanings so ascribed; and (b) the following terms shall have the meanings assigned to them herein below:

“Act” means the (Indian) Companies Act 2013;

“Affiliates” means, with respect to any Person (**“Subject Person”**), any other Person, which, directly or indirectly, Controls, is Controlled by or is under common Control with the Subject Person. If the Subject Person is an individual, the term **“Affiliate”** shall include a Relative of such Subject Person and any other Person which, directly or indirectly, is Controlled by such Relative. In relation to the Purchaser, the term **“Affiliate”** shall also be deemed to include: (a) any general or limited partners, fund, collective investment scheme, trust, partnership (including, any co-investment partnership), which is owned and/or managed and/or advised and/or sponsored and/or Controlled by Blackstone Inc. or any of its Affiliates; and (b) any investment trust in relation to which the LLP and/or its Affiliates hold at least 50% (fifty percent) or more of: (i) the total outstanding units of such Investment Trust; and/or (ii) the shareholding (on a Fully Diluted Basis) of the investment manager of such Investment Trust.

“Agreement” means this LLP Acquisition agreement, together with the Schedules and Annexures hereto, as may be amended, modified or supplemented from time to time, in accordance with its terms;

“Anti-Corruption Laws” means: (a) the (Indian) Prevention of Corruption Act, 1988, (b) the U.S. Foreign Corrupt Practices Act of 1977, as amended, and the UK Bribery Act 2010, as amended, to the extent applicable to the LLP and/or the Seller; (c) any other similar laws applicable to the LLP, Seller; and (e) where applicable, legislation enacted by member states and signatories implementing the OECD Convention Combatting Bribery of Foreign Officials in International Business Transactions;

“Anti-Money Laundering Laws” means: (a) the (Indian) Prevention of Money Laundering Act 2002, as amended, (b) to the extent applicable to the LLP, the Seller and/or Purchaser, financial recordkeeping and reporting requirements of the U.S. Currency and Foreign Transaction Reporting Act of 1970 and the U.S. Money Laundering Control Act of 1986, as amended, and (c) to the extent applicable to the LLP, the Seller and/or Purchaser, any related or similar Law issued, administered or enforced by any Governmental Authority;

“Applicable Law”, or **“Law”** means all applicable laws, rules, regulations, enactments, executive orders, ordinances, notifications, judicial pronouncements, bye-laws, statutes, rule of common law, orders, protocols, government approvals, treaties, codes, guidelines, policies, notices, directions, tax directions and tax treaties, judgments, listing agreement executed with stock exchanges, decrees, or other requirements or official directives of any Governmental Authority or Person acting under the authority of any Governmental Authority;

“Assets” means, with respect to a Person, assets or properties of every kind, nature, character and description (whether immovable, movable, tangible, intangible, absolute, accrued, fixed or otherwise) as operated, hired, rented, owned or leased by such Person from time to time, including cash, cash equivalents, receivables, securities, accounts and note receivables, real

estate, plant and machinery, equipment, patents, copyrights, domain names, trademarks, brands and other intellectual property, raw materials, inventory, furniture, fixtures and insurance;

“Business” means the business of: (a) conceptualizing, designing, constructing, developing, selling, leasing, licensing and/or managing warehouses (**“Core Business”**); (b) providing any services in relation to the Core Business including operating and managing projects, marketing, sales, leasing, licensing, tenant relationships, facilities management, etc; and (c) such other business being carried on by the LLP in accordance with their Charter Documents;

“Business Days” means days (other than Saturday or Sunday) on which banks are generally open for operation in Singapore, Mauritius, New Delhi and Mumbai (India);

“Charter Documents” means, with respect to a Person, the articles of association and memorandum of association, the certificate of incorporation or similar organisational or incorporation documents, of such Person;

“Closing” means the consummation of the transactions contemplated in Clause 7 (Closing) of this Agreement, including but not limited to, the transfer of Seller Interest by the Seller to the Purchaser;

“Consents” means any approval, consent, ratification, waiver, notice or other authorisation of or from or to any Third Party, including scheduled banks and financial institutions (other than a Governmental Approval) that may be required for: (a) fulfilling the obligations under the Transaction Documents; and/or (b) carrying on the Business in accordance with Applicable Laws;

“Contract” means, with respect to a Person, any written agreement, contract, promise, understanding, or other legally binding commitment of any nature entered into by such Person;

“Control” (including with correlative meaning, the terms, **“Controlling”**, **“Controlled by”** and **“under common Control with”**), with respect to a Person, means: (a) the acquisition or control of more than 50% (fifty percent) of the voting rights or of the issued share capital of such Person; (b) the right to appoint and/or remove all or majority of the members of the board of directors or other governing body of such Person; and/or (c) the power to direct or cause the direction of the management and exercise significant influence on the management or policies of such Person; whether obtained directly or indirectly, and whether obtained by ownership of share capital, voting arrangements, possession of voting rights, through Contract or otherwise; **“Encumbrance”** means any encumbrance, including but not limited to, any claim, debenture, mortgage, pledge, charge, hypothecation, lien, deposit by way of security, conditional sales contract, co-sale agreement, title retention agreement, non-disposal undertaking, escrow, voting agreement, power of attorney (by whatever name called), trust, option, pre-emptive right, beneficial ownership (including usufruct and similar entitlements), exercise of any other attribute of ownership, any arrangement (for the purpose of, or which has the effect of, granting security), public right, common right, any provisional or executory attachment, and any other Contract to give or refrain from giving any of the foregoing, whether conditional or otherwise, and **“Encumber”** shall be construed accordingly;

“Equity Securities” means equity shares and any options, warrants, convertible shares (including optionally convertible redeemable preference shares), bonds notes, debentures and other equity and debt securities of whatever kind of any Person that are directly or

indirectly convertible into or exercisable or exchangeable for any equity share;

“Existing LLP Agreements” means collectively the: (a) Limited Liability Partnership Agreement dated 1 February 2018 executed by and between Aditya Virwani and Purchaser, (b) Admission cum Reconstitution Deed dated 5 March 2018 executed by and amongst Purchaser, Aditya Jitendra Virwani, Seller and the LLP, (c) the Supplementary Agreement dated 13 May 2019 executed by and amongst Purchaser, Aditya Jitendra Virwani, Seller and the LLP, and (d) Amended and Restated LLP Agreement dated 8 October 2021 executed by and amongst Purchaser, Bagur Logistics Park Private Limited, Aditya Virwani, Seller and the LLP;

“Financial Year” means the period commencing from 1 April of one year and ending on 31 March of the immediately succeeding year;

“Fully Diluted Basis” means: (a) in the case of a company, that the calculation is to be made assuming that all outstanding Equity Securities (whether or not by their terms then currently convertible, exercisable or exchangeable), and any outstanding commitments to issue equity shares at a future date (whether or not due to the occurrence of an event or otherwise), have been so converted, exercised or exchanged or that have the effect of conversion, into equity shares, and (b) in the case of a limited liability partnership, that the calculation is to be made assuming that all outstanding capital contributions, and any outstanding commitments to make capital contributions at a future date (whether or not due to the occurrence of an event or otherwise), have been so made or exercised;

“Governmental Approval” means any permission, approval, consent, license, permit, order, decree, authorization, registration, certification, filing, notification, exemption or ruling to or from or with any Governmental Authority;

“Governmental Authority” means any nation or government or any province, state or any other political subdivision thereof, any applicable entity, authority or body exercising executive, legislative, judicial, regulatory or administrative functions of or pertaining to government, including any government authority, statutory authority, agency, department, ministry, secretariat, board, commission, instrumentality, court, tribunal, arbitrator or any securities exchange or body or authority regulating such securities exchange; of any jurisdiction in which a Party to this Agreement is a resident;

“Government Official” means: (a) an officer, employee, agent or any person acting in an official capacity for or on behalf of a Governmental Authority, including its departments, agencies, instrumentalities, quasi or partially government owned or controlled entities, or recently privatised government entities; (b) an officer, agent or employee of an international organisation (e.g., World Bank, United Nations, Japan Bank for International Cooperation or International Monetary Fund); and/or (c) an officer, agent or employee of a political party or any party official, or a candidate for governmental or political office;

“Improper Payment” means any bribe, improper rebate, payoff, kickback, or any other item of value provided with the intent to obtain or secure an undue business advantage;

“Indemnified Persons” means the Purchaser, the LLP and their Affiliates, and their respective directors, officers and employees;

“Indemnifying Person” means the Seller;

“INR” or “Indian Rupees” means the lawful currency of the Republic of India;

“Investment Trust” means, collectively, REIT and InvIT;

“InvIT” means a trust registered as an ‘Infrastructure Investment Trust’ under the (Indian) Securities and Exchange Board of India (Infrastructure Investment Trusts) Regulations, 2014;

“IT Act” means the (Indian) Income Tax Act 1961, including any amendments and any statutory re-enactment or replacement thereof and any circulars, regulations, notifications and clarifications made thereunder;

“Long Stop Date” means 10 (ten) days from the Execution Date, or such extended date which the Parties may mutually agree to in writing, and such extended Long Stop Date shall be deemed to be the **“Long Stop Date”** for all purposes hereunder;

“Losses” means any and all direct losses, liabilities (including payment of Taxes), obligations, claims, demands, actions, suits, judgments, awards, fines, penalties, fees, settlements and proceedings, damages, charges, reasonable costs, out-of-pocket expenses (including attorneys’ and accountants’ fees), disbursements, interests and penalties, and in each case whether or not resulting from any Third Party Claim and for the avoidance of doubt, shall not include any indirect or consequential losses;

“Material Adverse Effect” means an event (including which arises out of a change in Applicable Law or any act or omission by the Seller) which individually or together with any other events, has, or would reasonably be expected to have, a material adverse effect on any of the following:

- (a) the validity or enforceability of any of the Transaction Documents;
- (b) the Assets, Business, liabilities, financial condition, operations of the LLP; and/or
- (c) the ability of any of the Parties to perform their respective obligations under any of the Transaction Documents; and/or
- (d) the status and validity of any Consent or Governmental Approval required for the LLP to carry on the Business;

“Non-Recourse Persons” means a former, current or future equity holder, controlling person, director, officer, employee, agent, Affiliate, member, manager or general or limited partner of the Purchaser, or any direct or indirect former, current or future equity holder, controlling person, director, officer, employee, agent, Affiliate, member, manager or general or limited partner of any of the foregoing;

“Order” means any order, injunction, judgment, decree, ruling, or award of a court, arbitration body or panel, or other Governmental Authority;

“Partnership Interest” means the shares in the profits, losses and voting interests of the LLP;

“Person” means any natural person, limited or unlimited liability company, corporation, partnership (whether limited or unlimited), proprietorship, Hindu undivided family, trust, union, association, government or any agency or political subdivision thereof or any other entity that may be treated as a person under Applicable Law;

“Purchase Consideration” means the aggregate sum of INR 22,00,00,000 payable by the Purchaser to the Seller for the purchase the Partnership Interest held by the Seller in the LLPs;

“RBI” means the Reserve Bank of India;

“REIT” means a trust registered as a ‘Real Estate Investment Trust’ under the (Indian) Securities and Exchange Board of India (Real Estate Investment Trusts) Regulations, 2014;

“Relative” has the meaning as set forth in Section 2(77) of the Act and shall include the meaning ascribed to it under Accounting Standard 18 prescribed by the Institute of Chartered Accountants of India or other successive accounting standard prescribed under Applicable Law;

“Restated LLP Agreement” means the amended and restated limited liability partnership agreement proposed to be executed by the Purchaser, Bagur Logistics Park Private Limited and the LLP;

“RoC” means the jurisdictional Registrar of Companies;

“Sanctioned Country” means any country or region that is the subject or target of a comprehensive embargo under Sanctions Laws (currently including, but without limitation, Cuba, Iran, North Korea, Syria (until 1 July 2025), and the Crimea and so-called “Donetsk People’s Republic” and “Luhansk People’s Republic” regions of Ukraine);

“Sanctions Laws” means all the economic or financial sanctions, trade and import and export-related laws, regulations or embargoes implemented or enforced by the United States (including the Office of Foreign Assets Control (OFAC) of the U.S. Treasury Department, U.S. Commerce Department and U.S. State Department), the European Union, His Majesty’s Treasury, the United Nations, the RBI or any other sanctions Governmental Authority to whose jurisdiction any Party to this Agreement is subject;

“Sanctioned Person” means any individual or entity that is the subject or target of sanctions, prohibitions or restrictions under Sanctions Laws, including: (a) any individual or entity listed on any applicable U.S. or non-U.S. sanctions-related restricted party list, including without limitation, Office of Foreign Assets Control’s (OFAC) Specially Designated Nationals and Blocked Persons List and the European Union’s consolidated list of Persons, groups and entities subject to European Union financial sanctions; (b) any entity that is, in the aggregate, 50% (fifty percent) or greater owned, directly or indirectly, or otherwise controlled by a Person or Persons described in clause (a); or (c) any national of a Sanctioned Country;

“Seller Interest” means 5% (five percent) of the Partnership Interest in the LLP held by the Seller, together with all rights, title, interests and advantages thereto and free and clear of any and all Encumbrances;

“Tax” or collectively **“Taxes”** means any and all taxes (direct or indirect), assessments, duties, impositions, liabilities and other charges by any Governmental Authority in India, including taxes on income, profits, service, sales, wealth, use and occupation, and value added, *ad valorem*, transfer, franchise, withholding, payroll, employment, goods and services, capital gains, dividend distribution, excise, stamp duty and property taxes, together with all interest, penalties, charges, surcharge, cess and additions imposed with respect to such amounts;

“Third Party” means a Person who is not a party to this Agreement;

“Third Party Claim” means a claim made by a Third Party against the Indemnified Persons which may give rise to a Claim;

“Transaction” means the transactions effected (or intended to be effected) by and contemplated in this Agreement and the other Transaction Documents;

“Transaction Documents” means, collectively, this Agreement, the Restated LLP Agreement, and any other agreement or document designated in writing as a Transaction Document by the Purchaser; and

“Warranties” means the representations and warranties provided by the Seller and set forth in Clause 9.2 (*Representations and Warranties*).

2. Additional Defined Terms

For purposes of this Agreement, the following terms have the meanings specified in the indicated Clauses and/or Schedules of this Agreement:

DEFINED TERM	CLAUSE REFERENCE
Base Payment	Clause 10.1.6
Claim(s)	Clause 10.1.2
Closing Actions	Clause 7.3
Closing Date	Clause 7.1
Conditions Precedent	Clause 6.1
CP Satisfaction Certificate	Clause 6.2
Execution Date	Preamble
Indemnity Claim Notice	Clause 10.2.1
Information	Clause 12.1
Party(ies)	Preamble
SIAC Rules	Clause 11.1
SICC	Clause 11.1.5

PART B | INTERPRETATION

In this Agreement (unless the context requires otherwise):

- words using the singular or plural number also include the plural or singular number, respectively;

2. words of any gender are deemed to include all other genders;
3. the *ejusdem generis* (of the same kind) rule will not apply to the interpretation of this Agreement. Accordingly, references to “include” or “including” are to be construed without limitation;
4. the terms “hereof”, “herein”, “hereby”, “hereto” and derivative or similar words refer to this entire Agreement or specified Clauses, Schedules and/or Annexures of this Agreement, as the case may be;
5. references to Recitals, Clauses, Annexures, Paragraphs, Preamble and Schedules are to Recitals, Clauses, Annexures, Paragraphs of Schedules, Preamble and Schedules of this Agreement, all of which form a part of this Agreement;
6. references to any legislation or statute or statutory provision shall include a reference to that legislation, statute or statutory provision as amended, modified, supplemented, consolidated or replaced from time to time (whether before or after the Execution Date) and include all statutory instruments, rules, regulations or orders made pursuant to that legislation, statute or statutory provision and any subordinate legislation made under that legislation, statute or statutory provision;
7. unless otherwise specified, references to days, months and years are to calendar days, calendar months and calendar years, respectively;
8. the Recitals and the Schedules hereto shall constitute an integral part of this Agreement;
9. the index, table of contents, headings, subheadings, titles and subtitles are inserted for convenience only and shall not affect the construction or interpretation of this Agreement;
10. reference to any document includes an amendment or supplement to, or replacement or novation of, that document, but disregarding any amendment, supplement, replacement or novation made in breach of this Agreement and/or that document;
11. reference to an “amendment” includes a supplement, modification, novation, replacement or re-enactment and “amended” is to be construed accordingly;
12. any word or phrase defined in the body of this Agreement as opposed to being defined in Part A of SCHEDULE II (Definitions) above shall have the meaning assigned to it in such definition throughout this Agreement, unless the contrary is expressly stated or the contrary clearly appears from the context;
13. the expression “agreed form” in relation to any document shall mean the document in such form and substance as agreed between the parties to such document, and initialled for the purpose of identification by each of them;
14. if any provision in SCHEDULE II (Definitions and Interpretations) is a substantive provision conferring rights or imposing obligations on any Party, effect shall be given to it as if it were a substantive provision in the body of this Agreement;
15. when any number of days is prescribed in this Agreement, the same shall be reckoned exclusive of the first and inclusive of the last day. For instance, if the number of days prescribed is 30 (thirty) days from 1 July then the computation of 30 (thirty) days shall commence from 2 July and end on 31 July;

16. any reference to “writing” shall include printing, typing, lithography, electronic mails or transmissions by facsimile and other means of reproducing words in visible form, but excluding text messaging via mobile phones (including WhatsApp messaging);
17. where any Warranty is qualified as to a Party’s “knowledge”, or “to the best of their knowledge”, it shall be interpreted on the basis that such Party shall be deemed to have given an additional warranty that it has made such enquiries as are reasonable in order for it to form a reasonable basis for the statement made;
18. time is of the essence in the performance of the Parties’ respective obligations. If any time period specified herein is extended, such extended time shall also be of the essence;
19. the Parties have participated jointly in the negotiation and drafting of this Agreement. In the event any ambiguity or question of intent or interpretation arises, this Agreement shall be construed as if drafted jointly by all Parties, and no presumption or burden of proof shall arise favouring or disfavouring any Party by virtue of the authorship of any provision of this Agreement; and
20. the words “*directly or indirectly*” includes directly or indirectly through one or more intermediary Persons or through contractual or other legal arrangements, and “direct or indirect” have the correlative meanings.

SCHEDULE III | CONDITIONS PRECEDENT

1. The Warranties: (a) as given at the Execution Date remain true, accurate and not misleading in all respects; and (b) shall be true, accurate and not misleading in all respects as at the Closing Date.
2. No Material Adverse Effect should have occurred.
3. The Seller shall have procured a certificate from a reputed chartered accountant, as acceptable to the Purchaser, in a form and substance acceptable to the Purchaser, accompanied by relevant screenshots from the income-tax web portal and TRACES website of the Tax Authority as of 29 August 2025, certifying that: (a) there are no Tax demands and/ or Proceedings pending against the Sellers under the IT Act and no notice has been served upon the Sellers under Rule 2 of Schedule II of the IT Act as of 29 August 2025, and (b) there exists no factual development after 29 August 2025, that would result in Tax demands and/ or Proceedings pending against the Seller under the IT Act, and no notice has been served upon the Seller under Rule 2 of Schedule II of the IT Act, which could render the transfer of the Sale Shares to the Purchaser void under Section 281 of the IT Act.

SCHEDULE IV | FORMAT OF THE CP SATISFACTION CERTIFICATE

[Dated prior to the Closing Date]

To,

[•]

[Insert Address]

Re: LLP Acquisition Agreement dated [•] (the “Agreement”) executed by and amongst [•]

We refer to the Agreement executed by the parties thereto. In this letter, all capitalised terms used but not defined herein shall have the meaning given to them under the Agreement.

The Seller hereby confirms the fulfilment of the Conditions Precedent set out in Clause [•] (*Conditions Precedent*) read with SCHEDULE III (*Conditions Precedent*) of the Agreement. Where applicable, the documents evidencing the fulfilment of the Conditions Precedent are enclosed herewith.

Yours sincerely,

Authorised Signatory of the **Seller**

[insert name]

SCHEDULE V | FORMAT OF RETIREMENT DEED

This **RETIREMENT DEED** is entered into on this [•] day of [•] 2025 (“**Deed**”) at [•], India,

BY AND AMONG:

HORIZON INDUSTRIAL PARKS LIMITED, a company incorporated under the Laws of India having its registered office at One World Centre, Unit No 1501 B, Tower 1, 841, Jupiter Textile Mills, Senapati Bapat Marg, Mumbai, Maharashtra, 400013, India: AAFCE4159G (hereinafter referred to as the “**Partner 1**”, which expression shall, unless it be repugnant to the meaning or context thereof, include its Affiliates, successors and assigns) of the **FIRST PART**;

AND

SHAIL AGRO INDUSTRIES PRIVATE LIMITED, a company incorporated under the Laws of India having its registered office at 8082, Pocket A Sector C, Vasant Kunj, New Delhi 110070, India and having Permanent Account Number: AAACS0880R (hereinafter referred to as the “**Retiring Partner**”, which expression shall, unless it be repugnant to the meaning or context thereof, include its Affiliates, successors and assigns) of the **SECOND PART**;

AND

FARUKHNAGAR LOGISTICS PARKS LLP, a limited liability partnership incorporated under the Limited Liability Partnership Act 2008, bearing LLPIN AAL-5454 and having its registered office at 1st Floor, Embassy Point, 150 Infantry Road, Bangalore 560001, Karnataka, India (hereinafter referred to as the “**LLP**”, which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include its successors and assigns) of the **THIRD PART**;

AND

BAGUR LOGISTICS PARK PRIVATE LIMITED, a company under the Companies Act, 2013, having its registered office at 1st Floor, Embassy Point, 150, Infantry Road, Bangalore 560001, Karnataka, India and CIN: U70109KA2018PTC116753 (hereinafter referred to as “**Partner 2**”, which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include its successors and permitted assigns) of the **FOURTH PART**.

The Partner 1, and Partner 2 shall hereinafter be referred to individually as an “**Continuing Partner**” and collectively as the “**Continuing Partners**”.

The Partner 1, Partner 2, Retiring Partner and LLP shall hereinafter be referred to individually as a “**Party**” and collectively as the “**Parties**”.

WHEREAS:

- A. The LLP was incorporated on 28 December 2017 by Partner 1 and Aditya Jitendra Virwani under the Limited Liability Partnership Act, 2008 (“**LLP Act**”). In accordance with Section 23(4) of the LLP Act, Partner 1 and Aditya Virwani executed a Limited Liability Partnership Agreement dated 1 February 2018 (“**Original LLP Agreement**”), constituting the said LLP and *inter-alia* for the governance and operations of the LLP.
- B. Retiring Partner was admitted as a partner to the LLP, pursuant to the terms and conditions of the Admission cum Reconstitution Deed dated 5 March 2018 executed by and amongst Partner 1, Aditya Jitendra Virwani, Retiring Partner and the LLP (“**Admission cum**

Reconstitution Deed"). The terms of the Admission cum Reconstitution Deed also superseded the terms of the Original LLP Agreement.

- C. Partner 1, Aditya Jitendra Virwani and Retiring Partner subsequently entered into a Supplementary Agreement dated 13 May 2019 ("**Supplementary Agreement**") to amend the provisions regarding the designated partners of the LLP as set out in the Admission cum Reconstitution Deed.
- D. The Continuing Partners, Aditya Jitendra Virwani, Retiring Partner, and the LLP had Amended and Restated LLP Agreement dated 8 October 2021 ("**Amended and Restated LLP Agreement**") to: (i) admit Partner 2 as a partner to the LLP; (ii) record the resignation of Aditya Jitendra Virwani as a partner of the LLP and remove references to Aditya Virwani as a partner of the LLP; (iii) to reconstitute the LLP and record several aspects of governance and operation of the LLP; and (iv) to record the inter-se rights of the Partners.
- E. The Retiring Partner has now given notice to the Continuing Partners of his desire to retire from the said partnership from the date of execution of this deed, and has assigned and transferred all his share, right, title and interest in the said partnership business together with all the assets including goodwill and all outstanding, benefits of all permits and licenses held by the LLP pursuant to the Partnership Acquisition Agreement dated [•] executed by and amongst Partner 1, Retiring Partner, and the LLP.
- F. The Parties are now desirous of entering into this Deed to record the retirement of the Retiring Partner.

NOW, THEREFORE, in consideration of the mutual agreements and covenants set forth in this Deed, and for other good and valuable consideration, the receipt and sufficiency of which is acknowledged by the Parties, the Parties hereto covenant and agree as follows:

- 1. The Continuing Partners agree that the Retiring Partner has given notice to the Continuing Partners of his desire to retire from the said partnership from the date of execution of this deed, and has assigned and transferred all his share, right, title and interest in the said partnership business together with all the assets including goodwill and all outstanding, benefits of all permits and licenses held by the LLP pursuant to the Partnership Acquisition Agreement dated [•] executed by and amongst Partner 1, Retiring Partner, and the LLP ("**Partnership Acquisition Agreement**").
- 2. The Retiring Partner hereby agrees that the Retiring Partner has no receivables or claims (whether statutory, contractual or otherwise) outstanding against the LLP in respect of breach of any contract, compensation for loss of office or termination of employment or redundancy or unfair dismissal, or any other claim whatsoever against the LLP or its Continuing Partners, officers, employees and/or its agents ("**LLP Releasee**").
- 3. The Continuing Partners and the LLP hereby agree that the Continuing Partners and the LLP have no receivables or claims (whether statutory, contractual or otherwise) outstanding against the Retiring Partner, in relation to the negative net current capital of the LLP as on the Closing Date. It is hereby clarified that this shall not release the Retiring Partner from any liability arising pursuant to indemnity claims under the Partnership Acquisition Agreement.
- 4. The Retiring Partner acknowledges that there is no outstanding agreement or arrangement (whether under the provisions of the Applicable Laws, the Existing LLP Agreement or otherwise) under which the LLP has or could have any obligations towards the Retiring

Partner. To the extent that any such claim exists or may exist, the Retiring Partner hereby irrevocably waives such claim and hereby releases the LLP Releasee from any liability whatsoever in respect thereof.

5. The Parties agree that the change in the constitution of the said LLP will be notified to the Governmental Authorities in accordance with Applicable Law.
6. Terms used but not defined herein shall have the meanings assigned to them in the Partnership Acquisition Agreement.

[Following this page are the signature pages]

IN WITNESS WHEREOF, THE PARTIES HERETO HAVE CAUSED THIS DEED TO BE DULY EXECUTED AND DELIVERED BY THEIR DULY AUTHORISED REPRESENTATIVES AS OF THE DAY AND YEAR FIRST HEREINABOVE WRITTEN

Signed and delivered for and on behalf of

HORIZON INDUSTRIAL PARKS LIMITED

Name: [•]

Title: Authorised Signatory, authorised per resolution of the board of directors dated [•]

Signed and delivered for and on behalf of

SHAIL AGRO INDUSTRIES PRIVATE LIMITED

Name: [•]

Title: Authorised Signatory, authorised per resolution of the partners dated [•]

Signed and delivered for and on behalf of

FARUKHNAGAR LOGISTICS PARKS LLP

Name: [•]

Title: Authorised Signatory, authorised per resolution of the partners dated [•]

Signed and delivered for and on behalf of

BAGUR LOGISTICS PARK PRIVATE LIMITED

Name: [•]

Title: Authorised Signatory, authorised per resolution of the partners dated [•]